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CASE #	CASE NAME	HEARING NAME
CVRI2503846	DR. THERESA PAYNE vs NEPHROLOGY ASSOCIATES MEDICAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS

Tentative Ruling:

This is a FEHA case. On July 3, 2025, Plaintiff Dr. Theresa Payne, D.N.P., R.N., F.N.P.-C. ("Plaintiff") filed a Complaint against Defendants Nephrology Associates Medical Group, Inc. ("NAMG"), National Nephrology Alliance, LLC ("NNA"), and Dr. Salam Ishak (together, "Defendants"), asserting causes of action for: (1) discrimination on the basis of age; (2) harassment on the basis of age; (3) discrimination on the basis of gender; (4) harassment on the basis of gender; (5) retaliation; (6) failure to prevent discrimination, harassment, and retaliation; (7) wrongful termination in violation of public policy; (8) failure to pay all wages due upon termination; (9) violation of Labor Code § 1102.5; (10) violation of Bus. & Prof. Code § 510; (11) breach of implied-in-fact contract not to terminate without good cause; and (12) intentional infliction of emotional distress ("IIED").

On September 30, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against the same Defendants, asserting the same causes of action.

On December 9, 2025, Plaintiff propounded Special Interrogatories, Set One and Requests for Production, Set One to NAMG.

On March 18, 2026, NAMG served discovery responses, which Plaintiff contends are deficient.

Plaintiff now moves to compel NAMG to provide further responses to Special Interrogatory Nos. 41-54 and Request for Production Nos. 7, 9, 10, 15, 16, 20, 21, 23-25, 29, 32, 35, 51, 52, and 56- 58. Plaintiff seeks total sanctions of \$6,050.00 against NAMG and its counsel (\$2,750.00 for Special Interrogatories + \$3,300.00 for Requests for Production).

In opposition, NAMG argues that the discovery requests are overbroad and invade third party privacy rights. NAMG further contends that its responses to Request Nos. 9, 23-25, 29, and 35 are Code-compliant. Accordingly, NAMG asserts that sanctions should not be imposed because its objections are substantially justified.

In reply, Plaintiff contends that NAMG's objections as to overbreadth and privacy do not justify a complete lack of substantive responses.

Trial has not yet been set.

Analysis

I. Meet and Confer

The parties are required to meet and confer. (C.C.P. § 2030.300(b)(1) and 2031.310(b)(1).) Effective January 1, 2026, the meet and confer must be conducted in person, by telephone, or by videoconference, and state facts showing a reasonable and good faith attempt to informally resolve each issue presented by the motion. (C.C.P. § 2016.040(a).)

The evidence shows that the parties complied. (Salem Decl., ¶¶ 11, 13, 17.)

II. Special Interrogatories, Set One

Upon a timely motion to compel further responses, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits.” (C.C.P. § 2030.220(a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (C.C.P. § 2030.220(b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information....” (C.C.P. § 2030.220(c).)

Special Interrogatory Nos. 41-54 sought information regarding any complaints made to NAMG by any NAMG employees regarding discrimination, harassment, or retaliation based on age, sex, or gender from January 1, 2019 through the present. Specifically, the interrogatories asked NAMG to specify the nature and date of each complaint, identify each complainant, state whether an investigation was conducted, and if so, identify the persons involved in each investigation.

Defendant objected, arguing that the interrogatories are overbroad and invade third party privacy rights.

Plaintiff contends she needs the information to demonstrate “me too.” “Me too” evidence is permitted to prove certain things like motive. (See *Beyda v. City of Los Angeles* (1998) 65 Cal.App.4th 511, 521 [me too evidence to prove hostile work environment]; *Johnson v. United Cerebral Palsy/Spastic Children’s Found. Of L.A. & Ventura Counties* (2009) 173 Cal.App.4th 740, 763-767 [me too evidence about pregnancy discrimination to prove motive where workers were in the same location and same supervisors]; *Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 114-118 [me too evidence to prove motive where same supervisor and same protected class involved]; *Hatai v. Department of Transportation* (2013) 214 Cal.App.4th 1287, 1289-1292 [overruled on other grounds in *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97] [me too evidence of the same protected class permitted].) However, the

evidence must relate to the same protected class and same decision maker. (*Pinter-Brown v. Regents of Univ. of Calif.* (2020) 48 Cal.App.5th 55, 97-98.)

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 [applying to third party privacy rights].)

Personnel information is subject to a privacy right. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1427.) Here, Plaintiff is seeking information that identifies employees who made similar complaints or participated in the investigations into such complaints. This is a threatened intrusion. Although the Court generally does not look into the merits of a plaintiff’s case, the claims alleged in the FAC should be considered because these requests involve third party privacy rights. Here, Plaintiff’s allegations arise from her wrongful termination. (FAC, ¶ 21-24.) Although the interrogatories are limited in time (less than 10 years), and restricted to complaints based on the same protected class (age, sex, gender) and same decision maker (NAMG), they are not restricted to complaints from employees who NAMG has terminated. Plaintiff has not demonstrated that she took lesser forms of seeking the information. For example, Plaintiff could have asked the number of employees who made such complaints during the relevant time period, and then asked how many of those employees were eventually terminated. That could provide more context rather than seeking the identities of every employee who made a similar complaint.

Accordingly, the Court **DENIES** motion to compel further responses to Special Interrogatories, Set One in full.

III. Requests for Production, Set One

In a motion to compel further responses to a demand for production, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (C.C.P. § 2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior*

Court (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. § 2017.010.)

For requests for production, a response must contain a statement of compliance, an inability to comply, or an objection. (C.C.P. § 2031.210(a).) A statement of compliance shall state that the production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (C.C.P. § 2031.220.)

A statement of inability to comply shall state that a diligent search and a reasonable inquiry has been made to comply, the reason for the inability to comply, and the name and address of any person/organization that may have the documents. (C.C.P. § 2031.230.) Specifically, a statement of inability to comply shall “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party,” and shall also “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Id.*)

NAMG contends that its responses to **Request for Production Nos. 9, 23, 24, 25, 29, and 35** are Code-compliant because it stated that it would “produce all responsive documents that are in its possession, custody, and control,” produced such documents, and identified which documents in the production were responsive to the requests. However, NAMG fails to specify whether its production would be allowed “in whole or in part,” as required by C.C.P. § 2031.220. In addition, Plaintiff argues that her employment ended in July 2023, but NAMG’s document production does not contain any employee handbooks after February 2021; any internal communications, meeting notes, witness statements, or investigation documents regarding Plaintiff’s complaints or termination, including her severance agreement. Thus, the Court **GRANTS** the motion to compel further responses to **Request for Production Nos. 9, 23, 24, 25, 29, and 35**, and orders NAMG to produce a privilege log if necessary.

Request for Production Nos. 15 and 16 sought all documents relating to any dispute or complaint between NAMG and a current or former employee relating to discrimination. **Request for Production Nos. 51 and 52** sought all communications among NAMG’s employees regarding Plaintiff, and all communications between and among NAMG’s employees and Plaintiff. Defendant objected, stating that the requests are overbroad. As noted above, Request Nos. 15 and 16 are not limited to complaints relating to discrimination that were made by terminated employees. Further, Request Nos. 51 and 52 are not narrowly tailored to Plaintiff’s claims, but seek any communications (emails, letters, texts, etc.) to or about her. Plaintiff fails to demonstrate any relevance to support these overbroad and unduly burdensome requests. Thus, the Court **DENIES** the motion to compel further responses to **Request for Production Nos. 15, 16, 51, and 52**.

Request for Production No. 32 sought “all documents that relate or pertain to facts evidencing copies of any documents, pictures, memorandums, letters, notices, drawings or sketches regarding Plaintiff.” Defendant objected, contending that this request is unintelligible. Plaintiff fails to clarify the request in her separate statement. It is unclear what Plaintiff is seeking. Accordingly, the Court **DENIES** the motion to compel further responses to **Request for Production No. 32**.

Request for Production No. 56 sought the identity of any employees who received performance evaluations similar to those Plaintiff received in the five years preceding her termination, “upon which Defendant relied to any extent in its decision to terminate plaintiff’s employment.” Plaintiff argues that the request is relevant because it is comparator evidence, as it seeks “the very evaluations upon which Responding Party claims it relied in deciding to terminate Plaintiff’s employment.” (Separate Statement, RFP No. 56.) However, NAMG’s supplemental response to Form Interrogatory No. 201.4 refutes Plaintiff’s allegation of relevance, as it states that Plaintiff’s termination was not based in whole or in part on her job performance. (Guerin Decl., ¶ 5 and Exh. B.) Accordingly, Plaintiff has made no showing of relevance. Thus, the Court **DENIES** the motion to compel further responses to **Request for Production No. 32**.

As to **Request for Production Nos. 7, 10, 20, 21, 57, and 58**, NAMG contends that it will provide further responses. In Reply, Plaintiff confirms that NAMG served further responses on July 20, 2026. (Salem Decl. II, ¶ 2-5, Exhs. 12-13.) Accordingly, the motion to compel is **MOOT** as to **Request for Production Nos. 7, 10, 20, 21, 57, and 58**.

IV. Sanctions

Code of Civil Procedure sections 2030.300(d) and 2031.310(h) provide that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or a demand for production unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

NAMG has not requested sanctions against Plaintiff for filing the motion to compel further responses to Special Interrogatories, Set One. As to the motion to compel further responses to Requests for Production, Set One, the Court should decline to impose sanctions due to the mixed results.

RULING:

Deny the motion to compel further responses to Special Interrogatories, Set One, in full.

Grant the motion to compel further responses to Request for Production Nos. 9, 23, 24, 25, 29, and 35 within 30 days, and order NAMG to produce a privilege log if necessary.

Deny the motion to compel further responses to Request for Production Nos. 15, 16, 32, 51, 52, and 56.

The motion to compel further responses is moot as to Request for Production Nos. 7, 10, 20, 21, 57, and 58.

Deny Plaintiff's requests for sanctions.

3.

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Tentative Ruling:

See above